

25STCV16551 25STCV16551

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Case Number: 25STCV16551 Hearing Date: August 20, 2026 Dept: 400

MOTIONS TO COMPEL

FURTHER

The Court

tenders the following tentative decision in the matter Scott Kawasaki v.

Libra Hollywood, LLC, et al., Los Angeles County Superior Court case number

25STCV16551, set for hearing on August 20, 2026. Scott Kawasaki (Plaintiff) moves

for orders compelling Libra Hollywood, LLC (Defendant) to provide further

responses to the following discovery requests: (1) form interrogatories, set

one (FROGs); (2) requests for production of documents, set one (RFPs); (3)

special interrogatories, set one (SPROG1s); and (4) requests for admissions,

set one (RFAs). Plaintiff also requests a total \$20,000 in monetary sanctions. Defendant

opposes the present motions. Plaintiff's motions are granted in part. The Court

awards \$5,025 in sanctions.

A.

Legal Standard

A party may move for an order

compelling further responses to a request for production of documents if the propounding

party deems that responses are incomplete, evasive, or contain meritless

objections. (Code Civ. Proc., § 2031.310, subd. (a).) A motion to compel

further responses to requests for production "shall set forth specific facts

showing good cause justifying the discovery sought by the inspection demand." (Id., § 2031.310, subd. (b)(1).) A

party may also move for an order compelling further responses to interrogatories

if the propounding party deems that responses are incomplete, evasive, contain

meritless objections, or improperly exercise the option to produce documents

under section 2030.230. (Id., § 2030.300, subd. (a).) And a party may move for an order compelling

further responses to requests for admissions if it shows that an answer is evasive or incomplete or an objection is meritless. (Id., § 2033.290, subd. (a).)

“For discovery purposes, information is relevant if it ‘might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement.’

[Citation]. Admissibility is not the test and information, unless privileged, is discoverable if it might reasonably lead to admissible evidence.

[Citation] These rules are applied liberally in favor of discovery.” (Gonzales v. Superior Court (1995) 33 Cal.App.4th 1539, 1546.) “If the court determines that the answer or production sought is subject to discovery, it shall order that the answer be given, or the production be made on the resumption of the deposition.” (Code Civ. Proc., § 2025.480, subd. (i).)

B. Discussion

Plaintiff propounded the relevant discovery requests on January 23, 2026. (Stein Decl. ¶ 7.) Defendant served responses consisting solely of objections on February 24 and failed to respond to certain FROGs. (Id. ¶ 8.) Plaintiff sent a meet-and-confer letter instructing Defendant to provide further responses on March 31. (Id. ¶ 10.) Defendant responded the same day, raising objections to the discovery. (Id. ¶ 11.) On May 7, the Court denied Defendant’s motion for a blanket protective order limiting discovery, instructing the parties to engage in the normal discovery process instead. (Id. ¶ 9.) Plaintiff sent further meet-and-confer correspondence after the order. (Id. ¶ 12.) Defendant responded by asserting that it would provide further responses by July 10. (Id. ¶ 13.) Plaintiff filed the present motions on June 8, 2026. Defendant provided further responses on July 10.

Defendant contends that its supplemental responses render Plaintiff’s motions moot. In his reply, Plaintiff does not argue that further responses are still warranted with respect to the RFPs, SPROGs, or RFAs. But Defendant has still failed to provide any responses to FROGs 9.2, 14.1, 14.2, 15.1, 16.1, 17.1 and 50.1–50.6. (Stein Supp. Decl., Ex. A.) Thus, further responses to those FROGs are required. Additionally, Plaintiff still properly requests sanctions with respect to each motion due to Defendant’s failure to provide timely supplemental responses before Plaintiff’s motion to compel deadline, forcing him to file the present motions.

Accordingly, Plaintiff's motions to compel further responses are granted in part.

Plaintiff requests \$5,000 in sanctions with respect to each motion. Sanctions may be awarded where a party unsuccessfully opposes a motion to compel further responses to FROGs, SPROGs, RFP,s or RFAs, provided that the party does so without substantial justification. (Code Civ. Proc., §§ 2030.300, 2031.310, 2033.290.) Here, while Defendant provided the required discovery, it did not explain the delinquency of its supplemental responses and thus opposed Plaintiff's motions without substantial justification. Thus, sanctions are warranted. Counsel testifies to an hourly rate of \$950 for himself and \$600 for an associate, which the Court credits. (Stein Decl. ¶ 15.) Counsel further testifies that it took him 8 hours to review and revise the present motions, with the associate spending 24.5 hours conducting legal research and drafting the motions and anticipating a further 8 hours to draft the reply. (Ibid.) These estimates are unreasonable. The present motions share many elements and discuss Defendant's objections to discovery in general terms. The Court estimates that their drafting, along with the short reply brief, would reasonably take a \$600 per hour associate 6 hours, with counsel requiring 1.5 hours to review them. Thus, the Court awards \$5,025 in sanctions ($[\$600 \text{ per hour}] \times [6 \text{ hours}] + [\$950 \text{ per hour}] \times [1.5 \text{ hours}] = \$5,025$).

C. Conclusion

The Court grants Plaintiff's motions in part. Defendant is ordered to provide further responses to FROGs 9.2, 14.1, 14.2, 15.1, 16.1, 17.1 and 50.1–50.6 within 30 days. Additionally, \$5,025 in sanctions are imposed on Defendant's counsel to be paid in 30 days.